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# Counterfactual Stipulation Resolving the Counterclaim and Narrowing Count II

Filed: January 28, 2026 Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED

## United States District Court for the Northern District of West Virginia

Proceeding: Joint stipulation concerning claims remaining after partial summary judgment.

**Asterglen Freight Software, Inc., Plaintiff,** v. **Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.**

The parties jointly stipulate under Federal Rule of Civil Procedure 41 and the Court's authority to manage the action as follows. On January 12, 2026, the Court dismissed Count I of Asterglen's Complaint with prejudice on Copper Kestrel's motion for partial summary judgment. Count II against Meridian Silt and Copper Kestrel's $120,000 amended counterclaim otherwise remained pending.

Copper Kestrel now dismisses its amended counterclaim with prejudice. Asterglen consents. Each party waives any claim for fees or costs arising solely from the counterclaim, and neither will assert its former $120,000 demand as a setoff, recoupment, or defense to any judgment on Count I. This resolution is complete and requires no further adjudication.

Asterglen and Meridian Silt also agree to narrow Count II on the terms stated below. Copper Kestrel takes no position on the merits of the narrowed claim.

# Resolution of Copper Kestrel's Counterclaim

Copper Kestrel's amended counterclaim alleged that Asterglen violated Section 9.2 by disabling a shared staging credential, terminating the Pilot License, and demanding breach damages without written notice and a fifteen-calendar-day cure opportunity. Copper sought $120,000 in interruption and restoration losses. That claim is dismissed with prejudice in its entirety.

The dismissal includes every theory based on emergency dispatch labor, temporary routing services, customer credits, technical restoration, validation work, or other consequences attributed to the July 22, 2024 disablement. Copper relinquishes any affirmative recovery and any offset against Asterglen's dismissed Count I claim. Asterglen relinquishes any request for sanctions or fees based solely on Copper's assertion of the counterclaim.

The parties acknowledge that this settlement changes the posture considered in their earlier Rule 54(b) papers. There is no longer an unresolved claim presenting the same Section 9.2 interpretation, cure-feasibility issue, or competing monetary ledger as Count I. A decision on Count I cannot be reduced by the former counterclaim, and adjudication of the former counterclaim cannot moot or alter an appeal concerning Count I.

The dismissal is effective upon entry of the Court's approval. No payment or confidential condition remains for judicial enforcement.

# Narrowing of Count II Against Meridian Silt

Asterglen dismisses with prejudice every portion of Count II alleging that Meridian Silt induced Copper Kestrel's pre-July 22 deployment, caused Copper Kestrel to breach the twelve-terminal limit, altered Section 9.2, or procured the disputed July 8 oral permission. Asterglen will not use Count II to relitigate whether Copper Kestrel breached the Pilot License or whether Asterglen satisfied the notice-and-cure clause.

Count II remains only to the following limited extent: Asterglen alleges that Meridian Silt independently continued technical activity after receiving the July 22 termination communication, using configuration information already delivered, and that this post-termination conduct was intentional and improper. The contractual interests allegedly affected are limited to surviving duties concerning credential closure, return or protection of confidential information, and preservation of records. Meridian denies wrongdoing and maintains that its July 22–25 tasks were mitigation, session closure, continuity, and reduction assistance.

The remaining damages request is capped at $60,000 for additional post-July 22 injury not included in Asterglen's $480,000 Count I demand. Asterglen waives any overlapping recovery. Proof on the narrowed claim will concern Meridian's own notice, purpose, task records, and conduct after termination; it will not require a ruling on Copper Kestrel's liability, contractual cure, or the former counterclaim.

No party stipulates that Asterglen will prevail. The narrowing defines the issues and remedies that remain for trial.

# Requested Order and Continuing Schedule

The parties request an order approving the dismissal with prejudice of Copper Kestrel's amended counterclaim and the specified portions of Count II. They further request that the docket identify the sole remaining claim as the limited post-July 22 interference claim against Meridian Silt described in this stipulation.

The parties agree that the January 12 disposition of Count I remains unchanged. Count I sought $480,000 from Copper Kestrel and was dismissed with prejudice. This stipulation does not revive that claim, modify the partial-summary-judgment reasoning, or waive Asterglen's right to seek a properly supported final judgment under Rule 54(b).

Discovery on the narrowed Count II may continue without awaiting an appeal. The relevant remaining materials are Meridian's July 22–25 task records, communications received after termination, and proof of distinct post-termination loss. Evidence concerning June provisioning or the July 8 call may be used only for necessary background and not to obtain a determination already removed by this stipulation.

The parties jointly consent to entry of the requested order and represent that their organizational counsel have authority to bind them. Each party will bear its own costs regarding this filing.

Counsel for Asterglen Freight Software, Inc. Counsel for Copper Kestrel Logistics, LLC Counsel for Meridian Silt Holdings, LLC Authorized counsel designations